

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 2095

By: Kern of the Senate

and

Townley of the House

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9 An Act relating to game and fish; defining terms;
10 prohibiting residents and nonresidents from the
11 taking of certain game for compensation without
12 certain licenses; specifying requirements for certain
13 licenses; setting fees for certain licenses; creating
14 misdemeanor offense; requiring certain license
15 revocation upon conviction; requiring court to
16 transmit certain information; defining term;
17 providing exceptions; providing penalties; providing
18 for codification; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 5-202.2 of Title 29, unless
22 there is created a duplication in numbering, reads as follows:

23 A. As used in this section:

24 1. "Guide" means a person who is compensated by a licensed
outfitter to help the outfitter furnish personal services for the
conduct of waterfowl or crane hunting activities directly related to

1 the conduct of activities for which the employing outfitter is
2 licensed; and

3 2. "Outfitter" means a person who holds his or her business
4 operation out to the public for hire or consideration; provides
5 facilities or services for consideration; maintains, leases, or
6 otherwise provides compensation for the use of land and receives
7 compensation from a third party for use of such land; or uses
8 equipment or accommodations for consideration for the conduct of
9 waterfowl or crane hunting activities.

10 B. Except as otherwise provided in the Oklahoma Wildlife
11 Conservation Code, no person shall assist, accompany, transport,
12 guide, outfit, or aid persons in the taking of waterfowl or crane
13 for compensation or other consideration in this state without first
14 procuring a hunting outfitter or hunting guide license from the
15 Director of Wildlife Conservation or from any authorizing agent of
16 the Department of Wildlife Conservation.

17 C. For the purposes of this section, written permission may be
18 written or electronic information containing the name and phone
19 number of the landowner or agricultural lessee and the name of the
20 person who has been granted permission to carry out the activities
21 specified in subsection B of this section.

22 D. 1. The hunting outfitter shall be:

23 a. eighteen (18) years of age or older,
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1 b. able to produce a valid driver license or other proof
2 of identification, age, and residency. Any license
3 provided shall show such data, and shall include the
4 date of issuance, and

5 c. able to produce an insurance policy indicating a
6 personal liability coverage of no less than One
7 Million Dollars (\$1,000,000.00).

8 2. All persons applying for a hunting guide license shall be:

9 a. eighteen (18) years of age or older, and

10 b. able to produce a valid driver license or other proof
11 of identification, age, and residency. Any license
12 provided shall show such data, and shall include the
13 date of issuance.

14 3. The outfitter may employ any assistants as necessary, and
15 any person providing direct oversight of the hunting or assisting
16 with the hunting in the field shall possess a hunting guide license
17 and operate under a licensed outfitter. A licensed outfitter may
18 also provide the direct oversight of the hunting services.

19 E. The licenses provided in this section and the maximum fee
20 for each license shall be:

21 1. Annual hunting outfitter license for a resident not to
22 exceed One Thousand Dollars (\$1,000.00);

23 2. Annual hunting outfitter license for a nonresident not to
24 exceed Two Thousand Dollars (\$2,000.00);

1 3. Annual hunting guide license for assistants or helpers of an
2 outfitter for a resident not to exceed One Hundred Dollars
3 (\$100.00); and

4 4. Annual hunting guide license for assistants or helpers of an
5 outfitter for a nonresident not to exceed Two Hundred Dollars
6 (\$200.00).

7 F. The provisions of this section shall not:

8 1. Apply to resident landowners who provide such services on
9 properties they own or hold under an agricultural lease, nor shall
10 they apply to guides who are employees or direct agents acting on
11 behalf of the landowner on property the landowner owns or holds
12 under an agricultural lease;

13 2. Apply to individuals on lands licensed by the Department as
14 a commercial hunting area or lands licensed as a feral hog hunting
15 facility by the Oklahoma Department of Agriculture, Food, and
16 Forestry;

17 3. Exempt a resident or nonresident procuring a hunting guide
18 or outfitter license pursuant to this section from any other hunting
19 licenses as required by law;

20 4. Allow a hunting guide license holder to conduct business on
21 any land publicly owned, managed, or leased by the Department of
22 Wildlife Conservation or the Oklahoma Tourism and Recreation
23 Department; or
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1 5. Apply to lessees of rural land who provide such services on
2 properties leased by such individuals as a farming or ranching
3 business pursuant to Section 951 of Title 18 of the Oklahoma
4 Statutes or, if they indicated to the landowner or lessor, if the
5 primary use of the leased land is agricultural.

6 G. Any person convicted of violating any provisions of this
7 section shall, upon conviction, be guilty of a misdemeanor
8 punishable by a fine not less than One Thousand Five Hundred Dollars
9 (\$1,500.00) nor more than Two Thousand Dollars (\$2,000.00), by
10 imprisonment in the county jail for thirty (30) days, or by both
11 such fine and imprisonment.

12 H. Any person convicted of a second or subsequent violation of
13 any provisions of this section shall, upon conviction, be guilty of
14 a misdemeanor punishable by a fine not less than One Thousand Five
15 Hundred Dollars (\$1,500.00) nor more than Two Thousand Dollars
16 (\$2,000.00), by imprisonment in the county jail for not less than
17 six (6) months, or by both such fine and imprisonment.

18 I. Any hunting outfitter license or hunting guide license
19 issued to a person by the Department of Wildlife Conservation shall
20 be automatically revoked upon conviction of the person of a
21 violation of subsection B of this section or a violation of Section
22 5-202 of Title 29 of the Oklahoma Statutes. The revocation shall be
23 for a period set by the court of not less than one (1) year nor more
24 than ten (10) years. If the court does not set a period, the

1 revocation shall be for one (1) year from the date the conviction
2 becomes final. During this period of revocation, the Department
3 shall not issue the person a hunting outfitter license or hunting
4 guide license or any other hunting or fishing license. If the court
5 does not set a period, the Department shall not issue the person a
6 license before the first anniversary of the date the conviction
7 becomes final.

8 J. Any hunting outfitter license or hunting guide license of a
9 person convicted of a second or subsequent violation of the
10 provisions of this section shall be automatically revoked. The
11 revocation shall be for a period set by the court of not less than
12 three (3) years nor more than ten (10) years. If the court does not
13 set a period, the revocation shall be for three (3) years from the
14 date the conviction becomes final. During this period of
15 revocation, the Department shall not issue the person a hunting
16 outfitter license or hunting guide license or any other hunting or
17 fishing license. If the court does not set a revocation period, the
18 Department shall not issue the person a license within three (3)
19 years of the conviction of the person pursuant to this section.

20 K. A person who has a license revoked pursuant to this section
21 shall surrender the revoked license to the court, or the court may
22 order the defendant to surrender the license directly to an officer
23 from the Department of Wildlife Conservation present at the hearing.
24 If the license is surrendered to the court, the court shall send the

1 Department the revoked license. The court shall also send the
2 Department a copy of the judgment of conviction. In lieu of sending
3 a paper copy of the documents and information required by this
4 subsection, the court clerk may transmit the conviction information
5 using an electronic method authorized by the Department.

6 L. For purposes of this section, "conviction" shall include a
7 plea of guilty or nolo contendere to an offense or the imposition of
8 deferred adjudication for an offense.

9 M. The Department of Wildlife Conservation shall promulgate any
10 rules necessary to implement the provisions of this section.

11 SECTION 2. This act shall become effective November 1, 2026.

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13 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
14 OVERSIGHT, dated 04/15/2026 - DO PASS.

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